

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

CRIMINAL APPEAL NO.257 OF 2025

(Against the judgment dated 31.03.2022, passed by the Lahore High Court, Rawalpindi Bench Rawalpindi in Criminal Appeal No.656 of 2016) and Capital Sentence Reference No.6-T of 2016).

Ali Imran & others

...Appellant(s)

VERSUS

The State and another

...Respondent(s)

For the Appellant (s): Mr. Basharat Ullah Khan, ASC
Syed Rifaqat Hussain Shah, AOR

For the State: Mr. Tariq Siddique, Addl. PG, Punjab

Date of hearing: 05.03.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- The prosecution's case, as set out in the First Information Report ('**FIR**') Exh.PPP/1 bearing No. 133/11 dated 01.05.2011, registered under Sections 302, 324, 353, 396, 435, 427, 148 and 149 of the Pakistan Penal Code, 1860 ('**PPC**') and Section 7 of the Anti-Terrorism Act, 1997 ('**ATA**') at Police Station Pindigheb, District Attock, is that on 01.05.2011 Hamid Khan S.I. (PW-25), along with police constables Muhammad Sagheer and Shafi Ullah, after returning from their duty, stopped at Karwan Hotel to take tea. In the meantime, Muhammad Ramzan S.I., In-charge of Police Post Dhulian along with constables Shakir Abbas, Muhammad Sajjad, Adil Rabbani and Muhammad Imran, who were on patrolling duty, also arrived at the hotel in an official vehicle bearing registration No. 5317-AKB, driven by constable Saif Ullah.

2. At about 9:00 p.m., a double-cabin pick-up vehicle bearing registration No. IDK-7274 arrived at the spot, from which four persons, armed with Kalashnikovs, disembarked. In the light of the vehicles' headlights, Hamid Khan S.I. (PW-25), allegedly observed that one of the assailants had a dark (sanwla) complexion, was about 5 feet 9 inches tall, aged about 30-32 years, had a beard and was wearing black clothes. The second assailant had a wheatish complexion, was about 5 feet 7/8 inches tall, aged about 24-25 years, had a beard and was wearing a pant-shirt. The third assailant was also of wheatish complexion, about 5 feet 7/8 inches tall, aged about 24-25 years, had a beard and was wearing black clothes. The fourth assailant was wheatish in complexion, about 5 feet 7 inches tall, aged about 23-24 years, had a beard and was wearing light brown clothes. According to Hamid Khan, S.I., immediately after alighting from the vehicle, the assailants started indiscriminate firing upon the police mobile, as a result, Muhammad Ramzan, S.I., received firearm injuries and died inside the vehicle, while police officials Shakir Abbas, Muhammad Sajjad, Adil Rabbani, Muhammad Imran and Saif Ullah sustained firearm injuries. The driver assailant of the double-cabin vehicle, who was of wheatish complexion and aged about 24-25 years, along with an assailant/LMG operator having a beard, remained inside the vehicle. The four assailants snatched two official rifles, i.e., G-3 and MP-5, from the injured police officials. Thereafter, the driver assailant of the vehicle turned it towards the parking area of the hotel, where ten NATO oil tankers were parked. The assailant/LMG operator, while standing inside the vehicle, opened fire on the said oil tankers, as a result of which the tankers caught fire. The four disembarked assailants boarded their vehicle and fled towards Dhulian Chowk along with the snatched official arms and ammunition. Hamid Khan, S.I., along with other police officials, started chasing the assailants. After covering some distance, the assailants stopped their vehicle near the picket of Dhulian Police Post and started indiscriminate firing at the police officials present there, as a result, Munir Ahmad LHC, and Muhammad Asif, constable, received firearm injuries and died on the spot, while

constable Yasir Pervaiz sustained serious injuries. One of the assailants, who was wearing a pant-shirt, entered the wireless room of the Police Post, killed the wireless operator, namely Zafar Iqbal, constable, and damaged the wireless set. Thereafter, the assailants re-boarded their vehicle, continued indiscriminate firing, and escaped towards Dhoke Pathan. On the way, the assailants allegedly killed the driver of oil tanker bearing registration No. TLC-577, later identified as Rehm Dil, and caused injuries to the drivers of oil tanker bearing registration No. TLC-876, namely Dolat Shah, as well as Saddam Hussain. The assailants also fired upon other oil tankers on the way to Talagang and set them ablaze. The incident was reported by Hamid Khan, S.I. (PW-25), upon which the aforementioned FIR was registered.

3. The appellants were already arrested in case FIR No.73 dated 24.04.2010 registered under sections 302, 324, 395, 436, 353, 186, 427, 148, 149 PPC read with section 7-ATA, registered at Police Station Saddar Talang District Chakwal. During investigation of the said case on the alleged disclosure of the appellants about commission of the occurrence of the instant case, Syed Azhar Hussain Shah Inspector (PW.36), on 16.05.2011, arrested the appellants in the instant case. On 17.05.2011 the appellants were sent to Judicial Lockup for identification parade which was conducted on 06.06.2011. Upon completion of investigation, a report under section 173 of the Code of Criminal Procedure, 1898 ('the Code') was submitted against the appellants before the Anti-Terrorism Court-II, Rawalpindi Division Rawalpindi ('Trial Court'). Upon completion of investigation, the Trial Court vide judgment dated 30.06.2015 convicted and sentenced the appellants as under:-

Under Section 148 PPC read with section 149 PPC:- To undergo rigorous imprisonment for three years each and to pay Rs.50,000/- each as fine and in default thereof to further undergo four months simple imprisonment (S.I) each.

Under Section 324 read with section 149 PPC:- To undergo rigorous imprisonment for ten years each and to pay Rs.50,000/- each as fine and in default thereof to further undergo four months S.I.

Under Section 353 PPC: To undergo rigorous imprisonment for one year each.

Under Section 186 PPC: To undergo rigorous imprisonment for three months each.

Under Section 395 PPC:- To undergo imprisonment for life each and to pay Rs.50,000/- each as fine and in default thereof to further undergo four months S.I. each.

Under Section 435 PPC:-To undergo rigorous imprisonment for seven years each and to pay Rs.20,000/- each as fine and in default thereof to further undergo two months S.I. each.

Under Section 302 PPC:- Sentenced to death on six counts each and to pay Rs.2,00,000/- each as compensation under section 544-A of the Code to legal heirs of the deceased and in default thereof to further undergo six months S.I. each.

Under Section 7(1)(a) ATA:- Sentenced to death on six counts each.

Under Section 7(1)(b) ATA:- To undergo imprisonment for life each and to pay Rs.1,00,000/- each as fine.

Under Section 7(1)(c) ATA:- To undergo imprisonment for life each and to pay Rs.1,00,000/- each as fine.

Under Section 7(1)(d) ATA:-To undergo imprisonment for life each and to pay Rs.1,00,000/- each as fine.

Under section 7(1)(h) read with section 6(2)(m) ATA:- To undergo imprisonment for life each and to pay Rs.1,00,000/- each as fine.

Under section 7(1)(h) read with section 6(2)(n) ATA:- To undergo imprisonment for life each and to pay Rs.1,00,000/- each as fine.

Under section 7(1)(h) read with section 6(2)(i) ATA:- To undergo imprisonment for life each and to pay Rs.1,00,000/- each as fine.

4. The Lahore High Court, Rawalpindi Bench, Rawalpindi (hereinafter referred to as “the High Court”), while dismissing the appeal of the appellants/convicts, maintained their conviction and sentences and answered Capital Sentence Reference No. 6-T/2016 in the affirmative vide judgment dated 31.03.2022 (hereinafter referred to as “the impugned judgment”).

5. Feeling aggrieved of the impugned judgment, the appellants-convicts filed Criminal Petition No. 523 of 2022 before this Court seeking leave to appeal against the judgment passed by the High Court. Vide order dated 24.02.2025, leave was granted by this Court

to reappraise the evidence on record in the light of the contentions raised by the learned counsel for the appellants.

6. We have heard the learned counsel for the appellants as well as the learned Additional Prosecutor General, Punjab appearing on behalf of the State, and have carefully gone through the record of the case, the evidence produced by the prosecution, and the judgments rendered by the Courts below.

7. It appears from the record that the appellants were not nominated in the FIR by name. The FIR had, in fact, been registered against unknown accused persons on the statement of the Informant Hamid Khan, S.I. (PW-25), who along with constable Shafi Ullah (PW-26) was allegedly present at Karwan Hotel for taking tea when at about 9:00 p.m., a double-cabin pickup vehicle bearing registration No. IDK-7274 arrived at the hotel, from which four unknown persons, armed with Kalashnikovs, disembarked and started indiscriminate firing upon the police officials who were present there while performing patrolling duty. As a result of the firing, Muhammad Ramzan, S.I., received firearm injuries and died on the spot, whereas police officials Shakir Abbas, Muhammad Sajjad, Adil Rabbani, Muhammad Imran and Saifullah sustained injuries. Although Hamid Khan, S.I. (PW-25) in the FIR attempted to describe certain physical features of four of the assailants who allegedly alighted from the vehicle, but he did not disclose any description or identifying features of the remaining two assailants, namely the driver of the double-cabin vehicle and the person who allegedly remained inside the vehicle and fired with an LMG. Both Hamid Khan, S.I. (PW-25) and Shafi Ullah, constable (PW-26), while appearing before the trial Court, furnished the ocular account of the occurrence. However, it is noteworthy that none of them received even a scratch during the occurrence, what to say of sustaining any firearm injury, despite indiscriminate firing by four assailants. It is also improbable that after the first episode at Karwan Hotel PWs Hamid Khan SI and constable Shafi Ullah started chasing the assailants up to the picket of Dhulian Police Post where the second

occurrence allegedly took place. Firstly, both the said witnesses were admittedly not in official uniform and were not armed with official weapons, as according to their own version they had already completed their patrolling duty and had gone to the hotel merely for taking tea while wearing plain clothes and without official arms. Secondly, when one police officer had already lost his life and five police officials were lying in a seriously injured condition at the hotel, the version of the alleged eyewitnesses that they immediately started chasing the assailants appears highly unnatural and does not appeal to a prudent mind. Such conduct is contrary to the normal course of human behaviour. Furthermore, the version of the alleged eyewitnesses with regard to the identification of the assailants also appears doubtful. According to them, the assailants had suddenly arrived at the spot and immediately resorted to indiscriminate firing. In such a situation, where the entire episode allegedly occurred within a very short span of time and under a sudden and life-threatening attack, it does not appeal to reason that the alleged eyewitnesses could carefully observe and remember the minute details of the assailants such as their height, age, complexion and the clothes they were wearing. In such a situation, the normal conduct of a person is to save his own life rather than to meticulously note down the physical features of the assailants. The alleged eyewitnesses have also failed to establish their presence at the place of occurrence through any independent or unimpeachable evidence.

8. Another serious infirmity in the prosecution case is that the identification parade of the appellants was not conducted through any of the witnesses who had sustained firearm injuries during the occurrence. Instead, the identification parade was conducted through the informant Hamid Khan, S.I. (PW-25) and constable Shafi Ullah (PW-26), and that too in a joint manner. It is by now a well-settled principle of law that the identification parade of each accused person must be held separately and that a joint identification parade of multiple accused persons is unsafe and unreliable. Such a practice has consistently been disapproved by

this Court. The holding of a joint identification parade has repeatedly been deprecated by this Court. In this regard, reference may be made to the cases of *Gulfam and another v. The State* (2017 SCMR 1189) *Lal Pasand v. The State* (PLD 1981 SC 142), *Ziaullah alias Jaji v. The State* (2008 SCMR 1210), *Bacha Zeb v. The State* (2010 SCMR 1189) and *Shafqat Mehmood and others v. The State* (2011 SCMR 537).

9. Yet another circumstance which seriously dents the prosecution case is that the appellants had already been arrested in connection with FIR No. 73 dated 24.04.2010 registered at Police Station Saddar Talagang, District Chakwal, and were in judicial custody. It is the prosecution's own case that during interrogation in the said case the appellants allegedly made disclosure regarding their involvement in the present occurrence, whereupon they were formally arrested in the instant case as well. This circumstance clearly indicates that the identity of the appellants had already been disclosed to the police prior to the holding of the identification parade. It is well settled that where the accused persons are already known to the police or their identity stands disclosed prior to the identification parade, the evidentiary value of such identification becomes highly doubtful and loses its sanctity as a corroborative piece of evidence.

10. Last but not the least, in FIR No. 73 dated 24.04.2010, registered under Sections 302, 324, 353, 396, 435, 427, 148 and 149 of the Pakistan Penal Code, 1860 read with Section 7 of the Anti-Terrorism Act, 1997 at Police Station Talagang, District Chakwal, against the present appellants, wherein they had allegedly made disclosure regarding their involvement in the instant occurrence, the appellants have already been acquitted by this Court vide judgment dated 17.02.2025 while allowing Criminal Appeal No. 627 of 2022. In such circumstances, the alleged disclosure attributed to the appellants regarding the commission of the offence in the present case does not carry any legal weight and cannot be relied upon to connect them with the occurrence. It may

further be observed that the prosecution has failed to bring on record any independent evidence, either direct or circumstantial, which could reasonably connect the appellants with the commission of the offence. The evidence produced by the prosecution is replete with material inconsistencies and inherent improbabilities which cast serious doubt upon the veracity of the prosecution's case. It is a well-settled principle of criminal jurisprudence that if a single circumstance creates reasonable doubt in a prudent mind about the guilt of the accused, the benefit of such doubt must go to the accused. Such benefit is to be extended not as a matter of grace or concession but as a matter of right. The learned Courts below, while failing to advert to the aforementioned infirmities and material doubts in the prosecution's case, have thus fallen into a serious error of law in holding the appellants guilty of the offences charged against them.

11. For what has been discussed above, this appeal is allowed. The conviction and sentences of the appellants recorded by the learned Courts below are set aside and they are acquitted of the charge by extending to them the benefit of doubt. The appellants shall be released forthwith, if not required to be detained in any other case.

Judge

Judge

Judge

Islamabad the

5th March, 2026

Not Approved for Reporting

M.Siraj Afridi PS